

Mohd. Lateef Siddique v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 12 March 2024 · 2024:AHC-LKO:21829-DB · WRIT - C No. 434 of 2024 · **Writ disposed; consumer left to represent under Supply Code 6.5**

HEADNOTE

Enhanced electricity bills alleged to be incorrect. Writ disposed of with liberty to the consumer to make a detailed representation to the Executive Engineer under Section 6.5 of the Electricity Supply Code, 2005, within two weeks. If made, the representation is to be decided by a reasoned speaking order within one month in accordance with law. The Court did not enter the merits and left all questions open.

FACTUAL SUMMARY

Mohd. Lateef Siddique filed Writ-C No. 434 of 2024 in the Lucknow Bench against the State of U.P. through the Principal Secretary, Energy, and others, complaining that enhanced electricity bills served upon him were not correct. The Executive Engineer, Electricity Distribution Division, Madhyanchal Vidyut Vitran Nigam Limited, Lucknow, was respondent no. 2. On 29 January 2024 none appeared for the petitioner when the case was called in the revised list, and it was adjourned. Counsel for the petitioner and the Standing Counsel were heard on 12 March 2024.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

representation against an enhanced electricity bill

HOLDING

A consumer who says that enhanced electricity bills served on him are incorrect may be permitted to make a detailed representation to the Executive Engineer under Section 6.5 of the Electricity Supply Code, 2005, within two weeks, annexing the writ petition and supporting documents. If that representation is moved, the Executive Engineer shall consider and decide it in accordance with law by a reasoned and speaking order within one month of the certified copy and the representation being placed before him. The High Court did not examine the merits, and every question was left open for that authority. ¶ 12.3.2024

PRINCIPLE TAGS

U.P. Electricity Supply Code, 2005, clause 6.5 Used as the route for a representation against enhanced bills alleged to be incorrect. The writ was disposed of by permitting that representation and directing the Executive Engineer to decide it in accordance with law, without any finding on the bills. ¶ 12.3.2024

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ENHANCED ELECTRICITY BILLS SERVED ON THE PETITIONER WERE CORRECT

The Court stated that it had not applied itself to the merits and left all questions open for the competent authority.

¶ 12.3.2024